

Form No: HCJD/C-121

ORDER SHEET

IN THE LAHORE HIGH COURT

MULTAN BENCH, MULTAN

JUDICIAL DEPARTMENT

Case No. **Crl. Misc. No.6504-B of 2025**

Muhammad Shah Meer Versus The State and another

S. No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of Parties or counsel, where necessary
-----------------------------	---------------------------	--

11.12.2025	Mr. James Joseph, Advocate for the petitioner. Mr. Ansar Yaseen, Deputy Prosecutor General for the State and Amjad SI with police record. Mr. Muhammad Ali Siddiqui, Advocate for the complainant.
------------	--

Through this petition filed under Section 497 Cr.P.C., the petitioner seeks his post-arrest bail in case FIR No.497/2025, dated 24.04.2025, registered under Sections 302, 324, and 34 PPC at Police Station Civil Lines, District Muzaffargarh.

2. The specific allegation against the petitioner, as set forth in the crime report, is that on 23.04.2025, at about 9:30 p.m., he, in concert with his co-accused and in furtherance of their common intention, committed *Qatl-i-Amd* of Muhammad Yaqoob, the brother of the complainant, and caused injuries to Muhammad Zubair.

3. Learned counsel for the parties and learned law officer have been heard at length, and the available record has been carefully examined considering the submissions made. The factual assertions and legal contentions advanced by both sides have been duly considered to assess their relevance and bearing on the matter in case.

4. It has been directly observed by this Court that the petitioner is clearly nominated in the FIR with a specific allegation of having inflicted brick blows to the forehead and the back of the head of the deceased. The injury on back of head of the deceased is duly spelt out in the postmortem report

of the deceased. Although, upon receipt of the PFSA report, the doctor, who conducted the autopsy, opined that the injuries described in the postmortem report were not sufficient to cause death in the ordinary course of nature, he nevertheless concluded that the deceased had died due to an acute cardiac event. He further stated that, considering the Forensic Histopathology report, the deceased had a prior cardiac event and a compromised cardiac system. His final opinion reads as under:

“The physical altercation immediately preceding death likely triggered catecholamine surge exacerbated the pre-existing cardiac disease leading to sudden respiratory collapse leading to death supported by autopsy finding mentioned above without life threatening trauma or injuries or other pathology.”

In view of the medical findings on record, it is evident that the deceased suffered from a pre-existing cardiac condition, which was aggravated by the physical assault immediately preceding death. Although postmortem report confirms the absence of any life-threatening trauma yet attributes the cause of death to a catecholamine surge triggered by the stress of the assault, leading to sudden respiratory collapse.

5. This scenario attracts the application of the well-established common law principle known as the ‘Eggshell Skull Rule’, which provides that an accused must take the victim as he finds him. In other words, once harm is unlawfully inflicted upon a victim, the accused cannot escape criminal liability merely because the victim suffered from a pre-existing medical condition, physical infirmity, or was of tender or advanced age. The law holds the accused fully responsible for all consequences flowing from his act, even if the resultant injury is more severe than what would ordinarily be anticipated in a person of average health or physical condition. If the unlawful act of the accused contributes materially to the death, the accused remains liable for the consequences. Any mitigating circumstances, if available, are best left to be considered by the

learned trial court at the appropriate stage, upon conclusion of the evidence.

6. The eyewitnesses have categorically implicated the petitioner in their statements recorded under Section 161 Cr.P.C. Furthermore, the recovery of the weapon of offence, i.e. a brick has been effected pursuant to the petitioner's pointing out. Sufficient incriminating material is available on the record, which, *prima facie*, connects the petitioner with the commission of the alleged offence. Accordingly, the case of the petitioner squarely falls within the prohibitory clause of Section 497(1) Cr.P.C.

7. Resultantly, this petition for post-arrest bail having no substance is hereby **dismissed**.

(ALI ZIA BAJWA)
Judge

Approved for reporting.

Judge

*The order is pronounced, dictated
and signed on the same day.*

Haider Shah